described it as an 'anti-democratic measure' and a 'lawless law'.[1] Another MP described it as a 'legal monstrosity'.[2] Despite these pockets of trenchant criticism, the AFSPA was enacted unamended following seven hours of debate in both houses of Parliament.

The AFSPA was not drafted on a clean slate – its ancestry can be traced back to a series of laws enacted in the 1940s.[3] One of them – the Armed Forces (Special Powers) Ordinance of 1942 – was promulgated by the British viceroy of India, Lord Linlithgow, one week into the Quit India movement. The rationale offered for the 1942 Ordinance was that it was in response to the 'emergency' that had arisen which made it 'necessary to confer certain special powers upon certain officers of the armed forces'. This colonial lineage may have been ironic, but was not surprising. As a member of the Indian Civil Service put it, there was a 'tradition of decision-making by precedent inherent in the administrative processes and inherited from the predecessor government' and it was oddly assumed that 'the British technique of dealing with a situation was necessarily the correct technique'.[4] Another predecessor to the AFSPA of 1948 was enacted by the Constituent Assembly shortly after Independence. On that occasion, Pandit Thakur Das Bhargava cautioned the assembly against enacting this 'very drastic' law that undermined the rights of the people.[5]

As enacted in 1958, the AFSPA was a brief piece of legislation. It had only seven sections – but those sections comprised the difference between accountability and impunity. It enabled the governor of the state (and later, also the central government) to declare any part of any state (or indeed, the whole of the state) to which it applied as a 'disturbed area'. The AFSPA initially applied to Assam and Manipur, but was extended to all seven north-eastern states following the reorganization of states in that region.

The real sting of the AFSPA was in Section 4. It conferred certain special powers – or as some might say, near-unlimited powers – on members of the armed forces operating in 'disturbed areas'. These special powers assumed four manifestations, which can colloquially be described as the licences to kill, destroy, arrest and search. The 'licence to kill'[6] was the most draconian of these provisions. It permitted a member of the armed forces to